



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00198 / Meadowlark Estates, 2nd Filing Zone Change
Date: June 14, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/14/2021
- Public Services Committee 6/22/2021
- Second reading 6/28/2021
- Public Services Committee 7/7/2021
- Third and final reading 7/12/2021

Related Items:

- Meadowlark Estates, 2nd Filing Annexation (UDC-21-00197)
- Meadowlark Estates, 2nd Filing Preliminary Plat (UDC-21-00095)

Planning Commission Recommendation:

The Planning Commission heard this item at their June 7, 2021 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY MU MIXED USE AND COUNTY LR LOW DENSITY RESIDENTIAL TO CB COMMUNITY BUSINESS, LR LOW-DENSITY RESIDENTIAL, AND MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED NORTHEAST OF AND ADJACENT TO THE INTERSECTION OF DELL RANGE BOULEVARD, WEST OF WHITNEY ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 7, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Meadowlark Estates, 2nd Filing is hereby changed to CB Community Business; the zoning classification of the real property described as Lots 2-7, Block 1 and all of Block 2, Meadowlark Estates, 2nd Filing is hereby changed to LR Low-density Residential; and the zoning classification of the real property described as all of Block 3, Meadowlark Estates, 2nd Filing is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated Meadowlark Estates, 2nd Filing final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 7, 2021

STAFF REPORT

FILE: UDC-21-00198: Meadowlark Estates, 2nd Filing Zone Change

REQUEST: A request to rezone approximately 17 acres of land from County LR and County MU to CB Community Business, LR Low-density Residential, and MR Medium-density Residential in concert with an annexation

LOCATION: Northeast corner of Dell Range Boulevard and Whitney Road

APPLICANT: PKT Development – Butch Tilton

AGENT: Bruce Perryman, AVI, PC

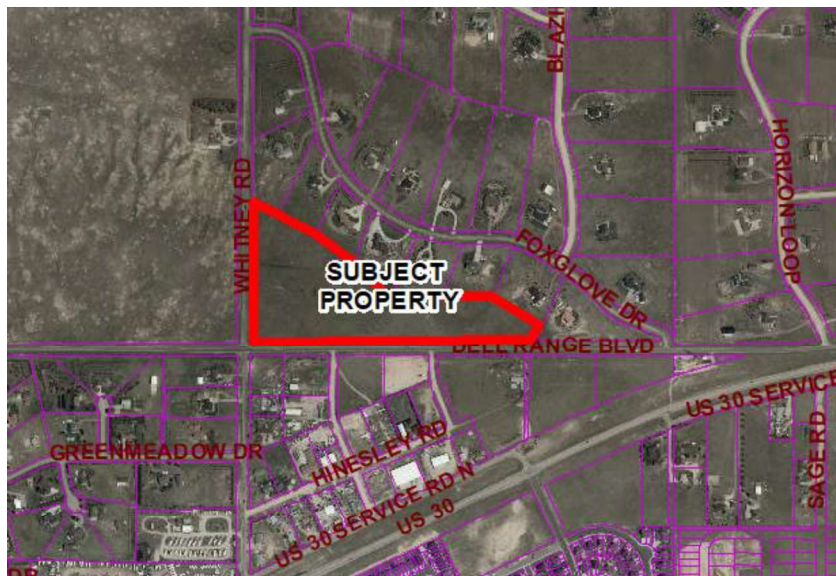
OWNER: Meadowlark Estates, LLC

ZONING: County MU Mixed-Use, County LR Low-density Residential

FUTURE LAND USE: Mixed-use Commercial, Urban Transition Residential

PURPOSE: To give land City zoning in concert with annexation.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Meadowlark Estates, 2nd Filing to CB Community Business; Lots 2-7, Block 1 and all of Block 2, Meadowlark Estates, 2nd Filing to LR Low-density Residential; and all of Block 3, Meadowlark Estates, 2nd Filing to MR Medium-density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County MU Mixed-Use and County LR Low-density Residential to CB Community Business, LR Low-density Residential, and MR Medium-density Residential for 17 acres of vacant land in concert with an annexation. The land is anticipated to be developed in the future with commercial and residential style uses and associated streets.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Transition Residential, Mixed-use Commercial	County LR, County MU	Undeveloped
North	Urban Transition Residential	County LR, County AR	Rural residential
South	Mixed-use Commercial	County MU, County NB	Rural residential, Service, Commercial
East	Urban Transition Residential	County LR, County AR	Rural residential
West	Urban Residential, Mixed-use Commercial	County A-2	Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary. Infrastructure does not currently exist in the area and development will require infrastructure extensions and improvements; however, adjacent developments may assist in the extension of infrastructure.

The Future Land Use Designation for this property is Mixed-use Commercial Emphasis and Urban Transition Residential. The optimal City zoning for the future land use designation of Mixed-use Commercial is MUB Mixed-use Business, but commercial or higher-intensity residential zoning may also be appropriate. The optimal City zoning for the proposed future land use designation of Urban Transition Residential is LR Low-density Residential or RR Rural Residential, but slightly higher-intensity or lower-intensity residential zoning may also be appropriate, especially on the edges of the area designated.

Based on the future land use designations, the proposed LR zone is the optimal zone for areas proposed to be zoned LR. While MUB is the optimal zone for the area designated Mixed-use Commercial, the CB zone is an acceptable alternative which would allow commercial development at the intersection. The area proposed to be zoned MR serves as a transition between the mixed-use area to the south and the lower-intensity residential areas to the north.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

To the north and east, the existing zoning is County LR and designated Urban Transition Residential by the comprehensive plan. The area of this re-zoning adjacent to this land is proposed to be zoned LR, which is the City zone most analogous to that County zone and considered the most appropriate City zone for areas and designated Urban Transition Residential.

The portion of this zone change proposed to be zoned MR is adjacent to areas zoned MU and NB in the County and designated Mixed-use Commercial, across a major transportation route. The MR zone is a lower-intensity zone than these adjacent zones, and would not have an undue influence on the surrounding parcels to the south.

The area proposed to be zoned CB is at the intersection of two major transportation routes. The property to the south is zoned MU in the County and designated Mixed-use Commercial. The property to the west is zoned AG in the City and also designated Mixed-use Commercial. The AG zone is a holding zone for future development – the area zoned AG adjacent to the area proposed to be zoned CB is anticipated to be zoned commercial use in the near future (likely CB zoning). While CB zoning is generally considered a higher-intensity zone than MU, the commercial expectation of the future land use designation and the location at a major intersection means CB zoning is compatible with nearby property.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current County LR zone allows lower-density, urban residential style uses, and the County MU zone allows a variety of commercial and residential uses – but in order to develop with lots any smaller than 5 acres, connections to a central sanitary sewer system is required. There is no

sanitary sewer system available in this area of the County outside of the Board of Public Utilities. The BOPU generally only services land within City limits (special exceptions are required to service unannexed land). The requirement for sanitary sewer or minimum lot sizes for septic system provision limits development options.

As the property is proposed to be annexed, City zoning is required. The proposed City LR zone is the zone most similar to the current County LR zone, and provides a similar range of development options, but by being part of the City, BOPU sewer would be anticipated to be extended to the parcel, allowing functional LR-style development.

The MR zone allows a broader mix of residential uses than the current County LR zone. The CB zone allows a range of commercial uses, but limits residential development.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The property is constrained by topography, adjacent major transportation routes, and previous development. The ability to create blocks and connections that meet the standards of Article 4 would be limited, no matter what City zoning was proposed. Also, due to the existing patterns, the ability of this land to meet optimal intersection spacing or block arrangement may be limited. The property is able to meet other standards of Article 4, but specific application of these standards to this land is reviewed and analyzed with the platting action. A concurrent Preliminary Plat is proposed with this zone change application.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended for retail, employment, service and civic uses that may serve a number of residential neighborhoods. Typically, areas zoned CB are expected to be more automobile-oriented and serve the region. It is typically expected in areas designated as activity centers or Community Business by the comprehensive plan. The future land use map designates the intersection of Christensen and US 30 as an activity center, and the area around the intersection of Whitney and US 30 as Community Business. Commercial development at this intersection is anticipated by the properties mixed-use future land use designation, and any commercial development at this intersection would likely have a regional service area (including the surrounding rural and low-to-medium density residential developments).

The LR zone is intended for a mix of lower density residential development with access to public infrastructure and city services. LR zoning is anticipated in areas designated Urban Transition Residential and should be less than a mile from commercial development. This area is designated Urban Transition Residential and is practically adjacent to current and future commercial development.

The MR zone is intended for a mix of residential densities and dwelling types with access to public infrastructure and city services. MR zoning is anticipated in areas designated Urban

Residential and should be less than a half mile from commercial development. While this area is not designated Urban Residential, the area proposed to be zoned MR provides a transition from the area zoned LR and nearby commercial or mixed-use zoning.

General commercial design standards apply to the CB zone. The area zoned CB would be required to provide a landscape buffer to the adjacent area zoned LR. The area zoned CB is not anticipated to have issues meeting the design standards.

Any residential development within the City is expected to meet the general residential design standards. These standards apply to the LR and MR zones, and these zone districts have no zone-specific standards.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. The proposed HI and LI zoning does not have zone-specific design standards beyond setback requirements, and the parcels proposed to be zoned LI and HI are large enough to allow development to meet the setback requirements. The proposed AG zoning is the zone most similar to the existing zoning on the property and on surrounding County properties. Development on the property zoned AG would require a future rezoning.

A specific development pattern is proposed on the land to be zoned, and the zoning amendment is dependent on alignment with the associated plat. Should the specific plat proposed for the land not be recorded after the zone change is approved, a separate zoning action should be pursued. Should the plat be recorded, but subsequently not developed, the areas zoned LR and MR could be replatted to accommodate different development patterns which would still be appropriate at this location.

There is no specific development proposed for the parcel to be zoned CB, and the CB-zoned parcel would have multiple development options.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne
- East Dell Range Boulevard / US 30 Corridor Study
- Whitney Road Corridor Plan

Conformance with PlanCheyenne is covered by review criterion 1.

Both the East Dell Range Boulevard / US 30 Corridor Study and the Whitney Road Corridor Plan both anticipate the development of this area with urban-style uses.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Alignment of information shown on the zone change map and preliminary plat map.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation. The CB, LR, and MR zones are appropriate based on the future land use designation for the subject property. Surrounding zoning includes lower-density residential and commercial zoning. Surrounding development patterns include rural residential and commercial development. The proposed zone change would not have an undue influence on the surrounding area.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

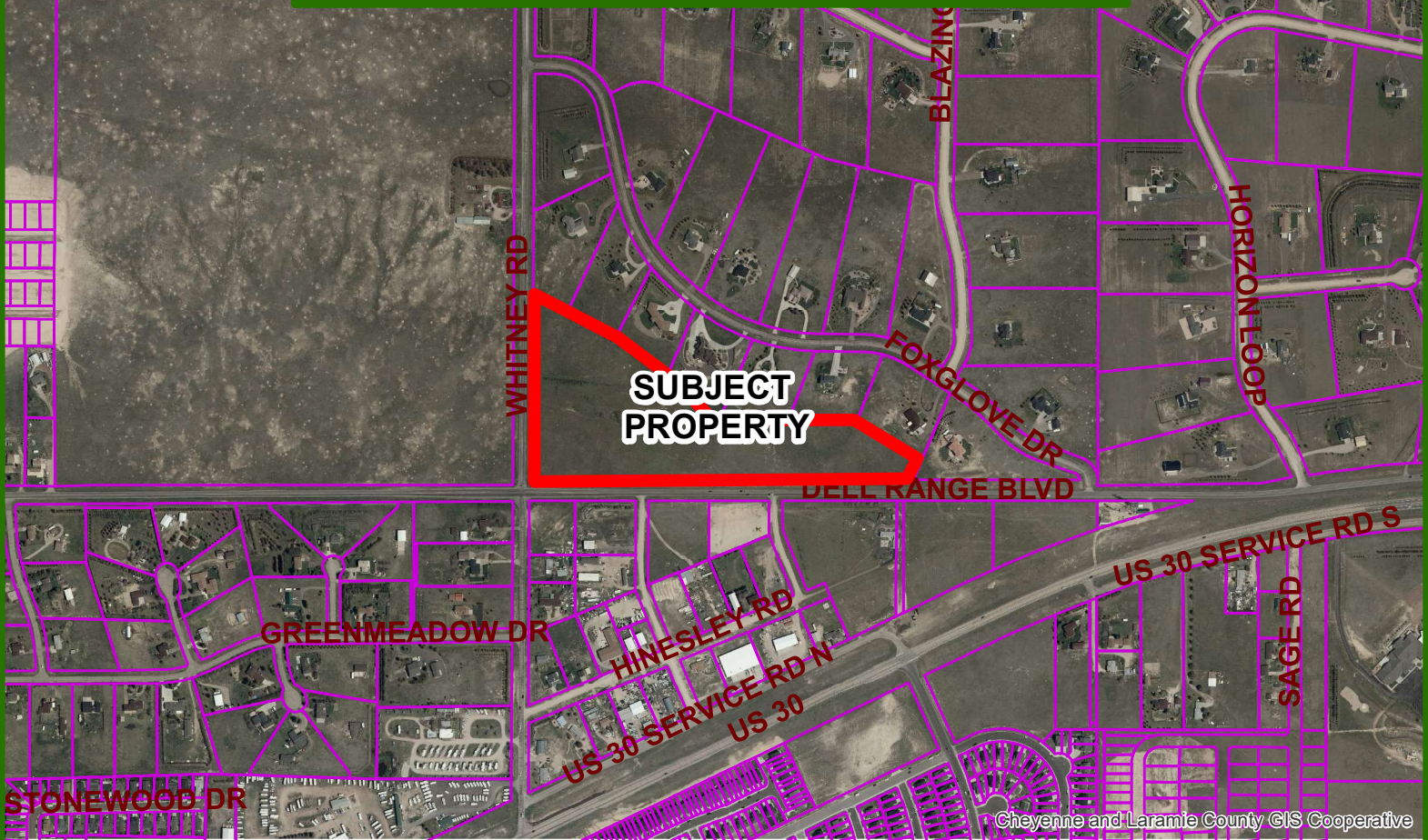
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County MU and County LR to CB, LR and MR.

ATTACHMENTS:

1. Aerial, Future Land Use Plan, and Current Zoning Map
2. Master Application
3. Applicant Provided Zone Change Map

Meadowlark Estates, 2nd Filing Zone Change

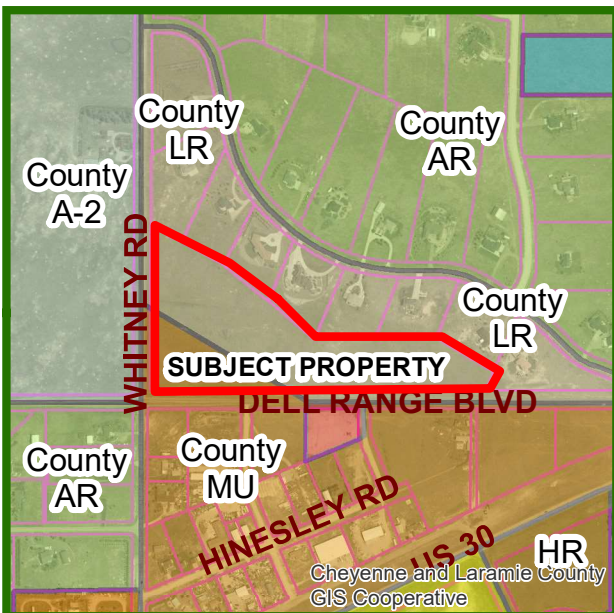


Application Number
Zone Change
UDC-21-00198

Applicant: AVI, PC
Bruce Perryman
Owner: PKT Development, LLC

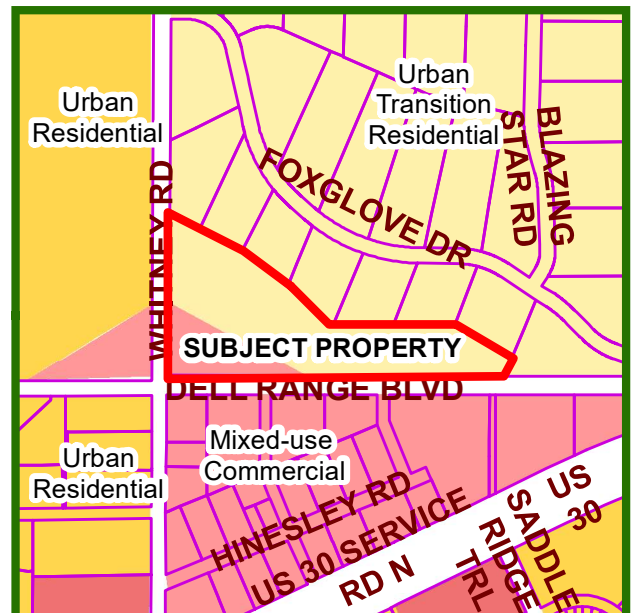
0 800 1,600
Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **5 May 2021, 8:32AM**

Receipt number: **16**

Related form version: **9**

General Information

Applicant Name: **PKT Development**

Applicant Address: **9440 Kentucky St**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-630-7643**

Applicant Email: **butch.tilton@yahoo.com**

Representative Name: **AVlpc**

Representative Address: **1103 Old Town Lane, Suite 101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-637-6017**

Representative Email: **perryman@avipc.com**

Owner Name: **Butch (Ken) Tilton**

Owner Address: **9440 Kentucky St.**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-630-7643
Owner Email:	butch.tilton@yahoo.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA Meadowlark Estates.pdf
Project Location (Street Address or General Location):	Foxglove Dr., Cheyenne, WY
Assessor's Parcel ID number(s)	
Total Project Area	17.12 ACRES
Existing Zoning	LR - Low-density Residential Other: MU
Requested Zoning	LR - Low-density Residential CB - Community Business MUB - Mixed-use Business Emphasis

Application-Specific Questions

Written Statement	The developer is looking to annex the property and therefore change the zoning to provide housing and commercial lots.
Zoning Map	4469_ZONE CHANGE Y.pdf
Notification Letter	Meadowlark Estates_neighbor-notification-letter.pdf
Supporting Documents / Information	4469_ZONE CHANGE Y.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

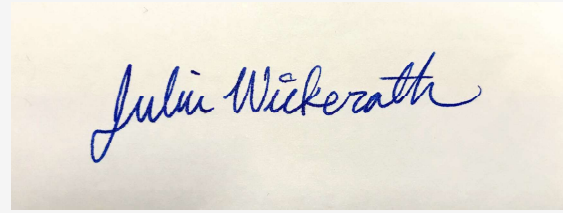
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Julia Wickerath



Uploaded signature image: [signature.jpg](#)

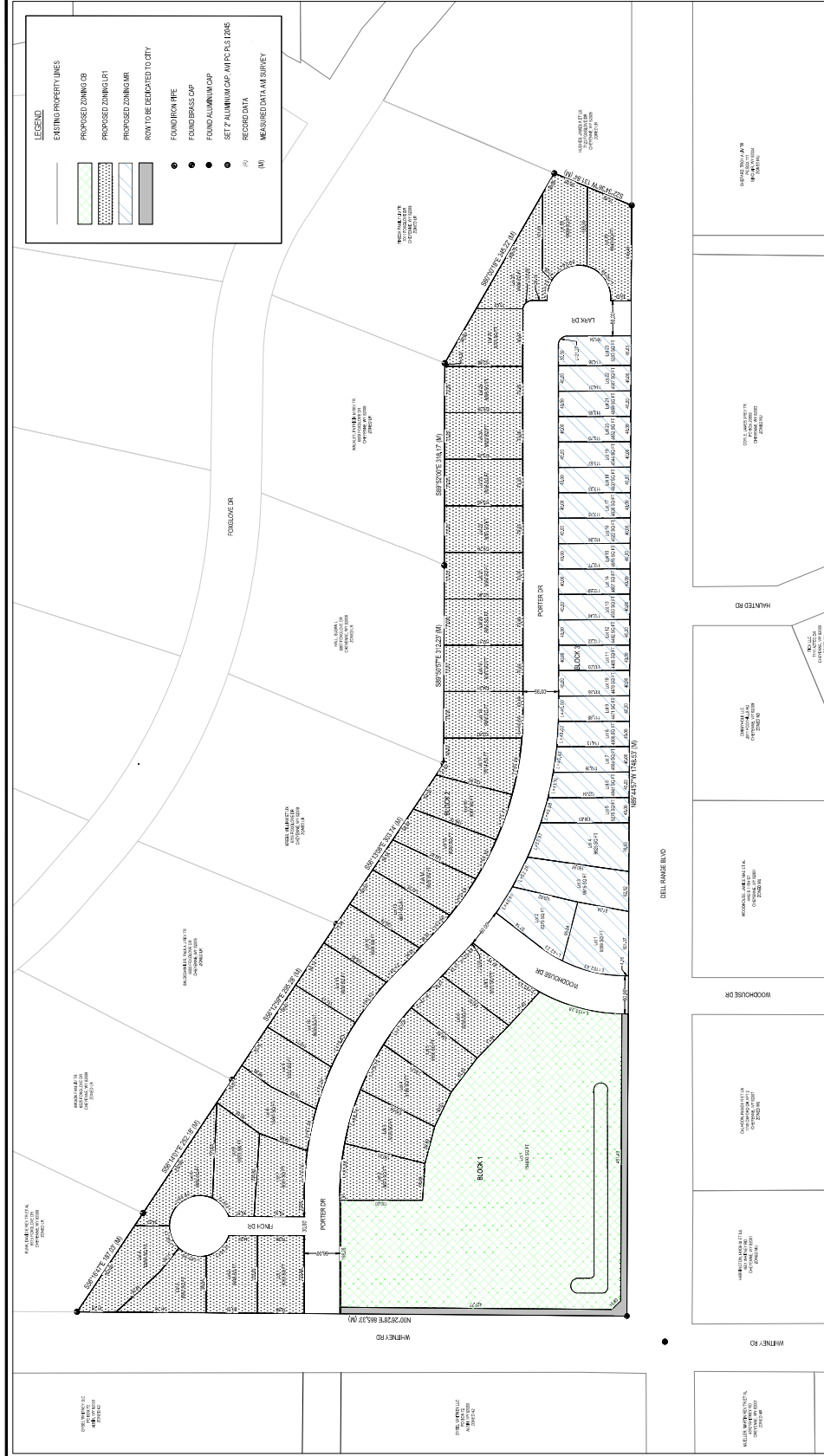
Please enter an email address for an email receipt.

jwickerath@avipc.com

**ZONE CHANGE MAP FOR
MEADOWLARK ESTATES**

TRACT 1 AND A PORTION OF TRACTS 2-9 OF MEADOWLARK ESTATES
AND BEING SITUATED IN A PORTION OF THE SW¼ OF SECTION 24, T.14N.,
R.66W., 6th P.M., LARAMIE COUNTY, WYOMING

PREPARED MAY 2021



ZONING

CURRENT ZONING : COUNTY, MU, LR
PROPOSED ZONING : CITY, LR, MR, C8

LEGAL DESCRIPTION

THE FOLLOWING IS A DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHWEST
QUARTER OF SECTION 24, TOWNSHIP 14 NORTH RANGE 68 WEST OF THE 6TH
RANGE, 14TH NEBRASKA

COMMENCING AT THE QTY OF CHEYENNE CONTROL POINT "DELL RANGE," THENCE
N74°53'24"E A DISTANCE OF 874.14 FEET TO A POINT ON THE NORTHERLY RIGHT OF WAY

[illegible]

SAID PARCEL CONTAINS 17.12 ACRES MORE OR LESS.

BASIS OF BEARINGS
GROUND COORDINATES SHOWN ARE BASED ON US STATE PLANE 1983, WYOMING STATE PLANE EAST FZKZNE 8001 WY E.

0.59965591765.
EXAMPLE P08
GROUND NORTHING = 140,810.15
GROUND EASTING = 277,801.14
STATE PLANE N = (140,810.15+1000)
STATE PLANE E = (277,801.14+5000)

ORIGINAL FIELD SURVEY BY: AM/PC

NOTES:

- EXISTING ZONING: COUNTY, MU, LR
- PROPOSED USE: RESIDENTIAL AND COMMERCIAL
- NUMBER OF TRIPS PER DAY: TO BE DETERMINED
- NEAREST FIRE HYDRANT: 6102 US HWY 30

LEGAL DESCRIPTION LR ZONING

BLOCK 1 LOTS 2-7 AND BLOCK 2 LOTS 1-29 OF
MEADOWBARK ESTATES 2ND FILING

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LEGAL DESCRIPTION MR ZONING

FOR INFORMATION

LEGAL DESCRIPTION OF ZONING

